

25PSCV01538 25PSCV01538

County: los-angeles

Division: Civil Law and Motion

Department: G

Hearing date: 2026-07-15

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=EA%20%2CG%2C07%2F15%2F2026

Source SHA-256: 6c413907db7a4a3f6830ed2ef7b26a26cd27a1dbcac875c2d9396fb164bafa12

Case Number: 25PSCV01538 Hearing Date: July 15, 2026 Dept: G

Defendant General Motors LLC's Motion for
Judgment on the Pleadings to Plaintiff Naomi Garcia's Amended Complaint

Respondent:

Plaintiff Naomi Garcia

TENTATIVE

RULING

Defendant

General Motors LLC's Motion for Judgment on the Pleadings to Plaintiff Naomi Garcia's Amended Complaint is GRANTED IN PART WITHOUT LEAVE TO AMEND as to the fourth cause of action and GRANTED IN PART WITH TWENTY (20) DAYS LEAVE TO AMEND as to the fifth cause of action.

BACKGROUND

This

is a Song-Beverly action arising out of the purchase of an allegedly defective motor vehicle. On January 3, 2019, plaintiff Naomi Garcia (Garcia) bought an SUV manufactured by defendant General Motors LLC (GM).

On

April 29, 2025, Garcia filed the Complaint.

On October 17, 2025, Garcia filed the operative Amended Complaint, alleging causes of action for (1) violation of Civil Code section 1793.2, subdivision (d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation

of Civil Code section 1793.2, subdivision (a)(3); (4) breach of the implied warranty of merchantability; and (5) fraudulent inducement by concealment. (The court notes that the numbering of the factual allegations in the Amended Complaint is inconsistent, so the court cites correctly numbered paragraphs by their assigned numbers and cites incorrectly numbered paragraphs with a preceding letter T.)

On March

17, 2026, GM filed this motion for judgment on the pleadings. On May 5, 2026, Garcia filed the opposition, and on May 12, 2026, GM filed the reply.

On May 19, 2026, the court continued the hearing to allow the parties to properly meet and confer.

The

motion is set for a continued hearing on July 15, 2026.

REQUEST

FOR JUDICIAL NOTICE

GM

requests that the court take judicial notice of a pleading filed in the Superior Court of California, Count of Alameda.

The court may take judicial notice of the records of any California court. (Evid. Code, § 452, subd.

(d)(1).)

Thus,

the court takes judicial notice of the requested record.

ANALYSIS

GM

moves for judgment on the fourth cause of action based on the statute of limitations and on the fifth cause of action based on the statute of limitations and on the failure to state sufficient facts.

For

the following reasons, the motion is GRANTED IN PART WITH LEAVE TO AMEND and GRANTED IN PART WITHOUT LEAVE TO AMEND.

Statute

of Limitations

Legal

Standard

A

motion for judgment on the pleadings will not lie where the action may be, but is not necessarily, barred. (See *Marshall v. Gibson, Dunn & Crutcher* (1995) 37 Cal.App.4th 1397, 1403, applying the rule to a demurrer; see also *Wise v. Pacific Gas & Electric Co.* (2005) 132 Cal.App.4th 725, 738, holding that a motion for judgment on the pleadings is akin to a demurrer.) In order for the bar of the statute of limitations to be raised by a motion for judgment on the pleadings, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred.” (See *Marshall*, supra, at 1403, applying the rule to a demurrer.)

“In

order to rely on the discovery rule for delayed accrual of a cause of action, a plaintiff whose complaint shows on its face that [their] claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence.”

(*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808, cleaned up.)

Discussion

Fourth

Cause of Action: Breach of the Implied Warranty of Merchantability

GM

argues that the cause of action for breach of the implied warranty of merchantability is barred by the applicable statute of limitations. The court agrees.

Implied

warranty claims are subject to a four-year statute of limitations. (Com. Code, § 2725; *Montoya v. Ford Motor Co.* (2020) 46 Cal.App.5th 493, 495.)

However, a claim for breach of implied warranty accrues, and, therefore,

the statute of limitations begins to run, upon tender of delivery. “Because an implied warranty is one that arises by operation of law rather than by an express agreement of the parties, courts have consistently held it is not a warranty that explicitly extends to future performance of the goods.” (Cardinal Health 301, Inc. v. Tyco Electronics Corp. (2008) 169 Cal.App.4th 116, 134, cleaned up.)

The

Amended Complaint alleges that Garcia bought the SUV on July 3, 2019. As such, the statute of limitations expired on July 3, 2023. (See AC, ¶¶ 6, 8; see also Montoya, supra, 46 Cal.App.5th at 495.) Garcia did not file the original Complaint until April 29, 2025, so the claim is barred by the statute of limitations. (See Compl., p. 1.)

Therefore,

Defendant’s motion for judgment on the pleadings is GRANTED WITHOUT LEAVE TO AMEND as to the fourth cause of action based on the statute of limitations.

Fifth

Cause of Action: Fraudulent Inducement by Concealment

GM

argues that the cause of action for breach of the implied warranty of merchantability is barred by the applicable statute of limitations. The court agrees.

Fraud

claims are subject to a three-year statute of limitations. (See Code Civ. Proc., § 338, subd. (d).)

Furthermore, “[t]he cause of action . . . is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (Ibid.)

The

Amended Complaint alleges that Garcia bought the SUV on July 3, 2019. As stated above, the statute of limitations expired on July 3, 2023. (See AC, ¶¶ 6, 8; see also Code Civ. Proc., § 338.) The Amended Complaint also alleges that Garcia discovered GM’s wrongful conduct “shortly before” she filed the original Complaint. (AC, ¶ 32.) Nevertheless, Garcia fails to allege sufficient facts regarding the time and manner of discovery of GM’s fraud and her inability to discover such facts sooner.

(See *Fox v. Ethicon*, supra, 35 Cal.4th at 808.) Without such allegations, Peraza's first four causes of action are subject to the statute of limitations.

Therefore,

Defendant's motion for judgment on the pleadings is GRANTED WITH LEAVE TO AMEND as to the fifth cause of action based on the statute of limitations.

Failure

to Allege Sufficient Facts

Legal

Standard

A

defendant may move for judgment on the pleadings when the "complaint does not state facts sufficient to constitute a cause of action against that defendant." § (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii)). "A motion for judgment on the pleadings is akin to a general demurrer; it tests the sufficiency of the complaint to state a cause of action. The court must assume the truth of all factual allegations in the complaint, along with matters subject to judicial notice." (Wise, supra, 132 Cal.App.4th 725, 738, internal citation omitted.)

Discussion

GM

argues that the Amended Complaint fails to allege sufficient facts to support a cause of action for fraudulent inducement by concealment. The court agrees.

In

cases claiming fraud through nondisclosure, it is not practical to allege facts showing how, when, and by what means something did not happen. (*Alfaro v. Community Housing Improvement System Planning Assn.* (2009) 171 Cal.App.4th 1356, 1384; see *Vega v. Jones, Day, Reavis & Pogue* (2004) 121 Cal.App.4th 282, 296, stating, "The pertinent question in a concealment case is not who said what to whom. . . .") Instead, the focus shifts from "who said what" to (1) whether there was a duty to disclose and (2) the elements of fraud. (*Bader v. Johnson & Johnson* (2022) 86 Cal.App.5th 1094, 1130–1131.)

Duty
to Disclose

The
court finds the Amended Complaint fails to allege sufficient facts to establish that GM owed Garcia a duty to disclose the alleged engine defect. An indispensable element of a claim for fraud by concealment is “the defendant must have been under a duty to disclose [material] fact[s] to the plaintiff.” (Kaldenbach v. Mut. of Omaha Life Ins. Co. (2009) 178 Cal.App.4th 830, 850.) “Ordinarily, failure to disclose material facts is not actionable fraud unless there is some fiduciary relationship giving rise to a duty to disclose.” (Magpali v. Farmers Group, Inc. (1996) 48 Cal.App.4th 471, 482.) “In transactions which do not involve fiduciary or confidential relations, a cause of action for non-disclosure of material facts may arise in at least three instances: (1) the defendant makes representations but does not disclose facts which materially qualify the facts disclosed, or which render his disclosure likely to mislead; (2) the facts are known or accessible only to defendant, and defendant knows they are not known to or reasonably discoverable by the plaintiff; (3) the defendant actively conceals discovery from the plaintiff.” (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 311.) “Our Supreme Court has described the necessary relationship giving rise to a duty to disclose as a ‘transaction’ between the plaintiff and defendant.” (Ibid.) Indeed, “[a]s a matter of common sense, such a relationship can only come into being as a result of some sort of transaction between the parties.” (LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 337.) “Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (Bigler-Engler, *supra*, at 312.)

The
Amended Complaint alleges that Garcia entered into a warranty contract with GM. (AC, ¶ 6.) However, the Amended Complaint does not allege that GM owes Garcia a duty to disclose arising from their transactional relationship, as required by Bigler-Engler, *supra*, 7 Cal.App.5th and LiMandri, *supra*, 52 Cal.App.4th. (See AC, ¶ T6, alleging a duty to disclose but not explaining the basis of the duty.) It is unclear from the allegations whether the alleged duty to disclose arises from the parties’ transaction or whether GM owes such a duty to the public at large. (See AC, ¶ 60, alleging that GM will not “notify the public”

about the defect, putting Garcia and “members of the general public” at risk.)

Thus,

the court finds the Amended Complaint fails to allege facts to establish GM owed Garcia a duty to disclose.

Elements of Fraud

The

court finds the Amended Complaint fails to allege sufficient facts to support a cause of action for fraudulent inducement.

The elements of fraud, including a cause of action for fraudulent inducement, “are (a) a misrepresentation (false representation, concealment, or nondisclosure); (b) scienter or knowledge of its falsity; (c) intent to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.) The facts constituting the alleged fraud must be alleged factually and specifically as to every element of fraud, as the policy of “liberal construction” of the pleadings will not ordinarily be invoked. (Lazar v. Super. Ct. (1996) 12 Cal.4th 631, 645.) To properly allege fraud against a corporation, the plaintiffs must plead the names of the persons allegedly making the false representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. (Tarmann v. State Farm Mutual Automobile Ins. Co. (1991) 2 Cal.App.4th 153, 157.)

For

the first element, the Amended Complaint alleges that GM concealed an engine defect from Garcia. (AC, ¶¶ T14, 54, 59,

61, 74.) For the second element, Garcia

alleges that GM knew that the SUV she purchased contained engine defect. (AC, ¶¶ 59, 61, 64–65.) For the fourth element, Garcia alleges that

she relied on GM’s advertising materials, which did not disclose the

defect. (AC, ¶ 74.) For the fifth element, the Amended Complaint

alleges that Garcia lost money by purchasing a vehicle that is unsafe and

worthless. (AC, ¶¶ 20–21, 43, 57, 63, 73.) However, for the third element, the Amended Complaint

fails to allege that GM intended to deceive Garcia and induce her into buying

the SUV. Furthermore, the Amended

Complaint did not allege sufficient facts to claim fraud against GM as a corporation. (See Tarmann, *supra*, 2 Cal.App.4th at 157.) Thus, the Amended Complaint

does not sufficiently plead the elements of fraud.

Therefore,

Defendant's motion for judgment on the pleadings is GRANTED WITH LEAVE TO AMEND as to the fifth cause of action based on the failure to allege sufficient facts.

CONCLUSION

For

these reasons, the motion for judgment on the pleadings is GRANTED IN PART WITHOUT LEAVE TO AMEND as to the fourth cause of action and GRANTED IN PART WITH TWENTY (20) DAYS LEAVE TO AMEND as to the fifth cause of action.